

Court No. - 10

Case :- CRIMINAL MISC. WRIT PETITION No. - 2763
of 2023

Petitioner :- Ajay Kumar

Respondent :- State Of U.P. Thru. Secy. Home
Deptt. Lko. And Others

Counsel for Petitioner :- Anil Kumar Akela, Nalini

Counsel for Respondent :- G.A.

Hon'ble Mrs. Sangeeta Chandra, J.

Hon'ble Narendra Kumar Johari, J.

Learned counsel for the petitioner prays that he may be granted a day's time to correct the description of the opposite party no. 3 in the array of the parties.

Learned counsel for the petitioner may do the same during the course of the day.

List this case on 17.04.2023.

Order Date :- 12.4.2023

Darpan Sharma

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Heard learned counsel for the petitioner, learned A.G.A. for the State/respondent No.1 and 2 and Shri Amit Kumar Dwivedi, who appears for opposite party No.3 Madhyanchal Vidyut Vitran Nigam Ltd. through its Executive Engineer and perused the material placed on record.

This writ petition has been filed by the petitioner seeking a writ, order or direction in the nature of Certiorari thereby quashing the impugned First Information Report dated 2.6.2022, registered as Case Crime No.0879 of 2022, under Section 135 of the Indian Electricity Act, 2003, Police Station - Anti Power Theft Unnao, District - Unnao.

It has been submitted by learned counsel for the petitioner that late Gomti Prasad, father of the petitioner had domestic electricity connection in his name and after his death petitioner applied for mutation of the electricity connection in his name in 2014 itself. Now the F.I.R. has been lodged by opposite party No.3 against late father of the petitioner.

Shri Amit Kumar Dwivedi, on the basis of instructions received from the Executive Engineer of the Division concerned states that there is a specific paragraph 4.55 of the Electricity Supply Code, 2005 wherein for mutation of name of consumer in the electricity connection a prescribed format has been provided wherein the fee has to be deposited. Since the formalities have not been completed, therefore, name of the petitioner has not been mutated in the electricity connection. In so far as the lodging of the F.I.R. is concerned, it is with regard to theft of electricity and any person who is found in occupation of the premises or who is guilty of theft or unauthorized use of electricity can be charged with the offence under Section 135 of the Indian Electricity Act. It has been submitted that the petitioner has statutory remedy under Section 152 of the Indian Electricity Act, 2003.

This writ petition is **disposed of** with the direction to the petitioner to approach the competent authority under Section 152 of the Indian Electricity Act, 2003 within a week from today. The competent authority shall look into the grievance raised by the petitioner and pass appropriate order, which shall be communicated to the police authorities concerned for withdrawal, if needed, of the F.I.R. as not pressed.

Order Date :- 17.4.2023

ML/-